



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-22-00092 – Harmony Valley, Second Filing Final Plat
Date: May 9, 2022

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Final consideration 5/23/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR HARMONY VALLEY, SECOND FILING, A REPLAT OF LOT 1, BLOCK 8, HARMONY VALLEY FIRST FILING, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING. (LOCATED NORTH OF COLLEGE DRIVE, BETWEEN ELSIE JEAN TRAIL AND YORK AVENUE).”

WHEREAS, Tru-Grit Land Development LLC., has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Tru-Grit Land Development LLC., the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Harmony Valley, Second Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



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CITY OF CHEYENNE PLANNING COMMISSION

MAY 2, 2022

STAFF REPORT

FILE: UDC-22-00092: Harmony Valley, Second Filing (Expedited Review)

REQUEST: A plat creating 27 lots for multifamily residential development

LOCATION: North of College Drive, between Elsie Jean Trail and York Avenue

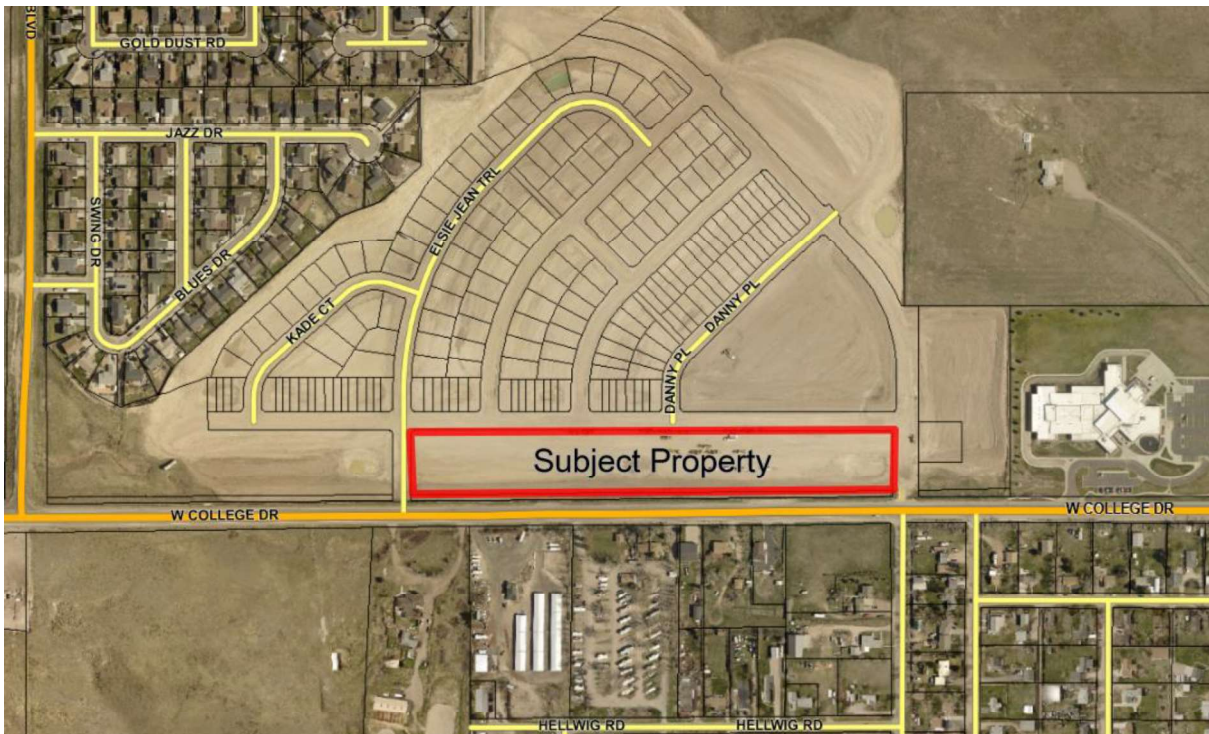
APPLICANT: Kelly Hafner, Civilworx

OWNER: Tru-Grit Land Development

ZONING: PUD – Harmony Valley PUD (ORD 4274)

PURPOSE: A plat dividing one multifamily lot to 27 lots for multifamily development – 22 lots with structures under independent ownership, and 5 common lots for parking lot, utilities, and drainage.

PREPARED BY: Seth Lloyd, Planner II – Development



RECOMMENDED MOTION:

Move to **approve** the Harmony Valley, Second Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat for 6.7 acres of land. The subject property is currently slated for multifamily development on one lot. The purpose of this plat is to divide the property into multiple multifamily lots (change in ownership pattern).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial	Harmony Valley PUD (ORD 4274)	Vacant
North	Mixed-use Commercial	PUD (ORD 4274)	Residential (detached, attached), Vacant
South	Urban Residential	PUD (ORD 4274), County PUD, County CB, County MU, County MR	Residential (mobile home park, detached), light industrial, limited agriculture
East	Mixed-use Commercial, Public & Quasi-public	PUD (ORD 4274), CB Community Business	Vacant, School
West	Mixed-use Commercial	PUD (ORD 4274)	Residential (detached), Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

This development is in conformance with the principles and future land uses identified in PlanCheyenne. The property is within the Urban Service Boundary and has access to all utilities. The future land use map within PlanCheyenne identifies this area as developing with mixed-use commercial development. PlanCheyenne encourages responsiveness to market demands, and the change in ownership pattern is in response to market demands.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is a replat of one lot which is within a larger recent plat. The location of open spaces, blocks, and public facilities are not being modified with this plat. Providing multifamily adjacent to major rights-of-way, with single-unit residential further from the corridor, is appropriate.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. Fees previously paid may be credited toward the payment currently due. This land was previously platted in 2019, and plat fees have not charged since that time.

Total Fees due at signing of the plat: **\$0.00**

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Residential Enhancement Fee	\$400 per dwelling unit
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Commercial Enhancement Fee \$1,100 per acre

Transportation Network (4.3):

This plat is occurring within an area of the community which has been previously platted. There is limited opportunity to modify the block layout or street network. The proposed plat is near a regional transportation route (College Drive) which would severely limit access.

Open Space (4.4):

This parcel is part of the Harmony Valley PUD, and a 5-acre park is being provided central to the development to meet open space requirements. The park is located immediately to the north of the eastern portion of this plat.

Required Improvements (4.5):

This plat appears to be able to provide all required utilities to the lots within this development. Easements are provided for BOPU utilities and for other utilities. Developments are required to provide improvements adjacent to their development. The engineering and construction of the public rights-of-way associated with this development are already in process.

Public Safety Fees (4.6):

Public Safety Fees are required at \$836.88 per dwelling unit. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

This parcel was previously platted and has gone through site plan and engineering plan reviews for development as a single parcel. The modification to the ownership pattern of the multifamily development would not significantly change the traffic, drainage, or other technical reports. No concerns were identified with this submittal.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes 27 lots. Of the 27, 22 are proposed as buildable multifamily lots. The parcel was originally proposed as a multifamily development on one parcel. A site plan was submitted and has received initial reviews to develop with multifamily. An adjustment to the site plan will likely be necessary to better align the buildings with the proposed property lines.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

There are 5 lots which are not proposed to be buildable lots (used for common parking, utilities, and drainage). The applicant has indicated the 5 common lots will be owned under undivided interest. These will be maintained by the common owners (likely via the Harmony-Valley-wide HOA or a smaller sub-HOA underneath the larger HOA).

The application **complies** with this review criterion.

- 8) **The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

Properties adjacent to this plat are part of the Harmony Valley PUD. This lot and the surrounding lots will remain within the PUD. Multifamily development in this location was anticipated by the

PUD zone and the original plat. The only change is the ownership model. The change to ownership model will not have an undue influence on surrounding properties.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through the review process and application of the Preliminary Plat, Staff does not recommend any conditions to the plat.

The application **complies** with this review criterion.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Minor clerical corrections (corrected with revised submittal).

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant.

The area this plat is proposed in is anticipated to develop as a largely residential neighborhood, based on both existing development and the patterns proposed by the comprehensive plan. The proposed plat is consistent with this development pattern.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body **(Staff Recommendation)**.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

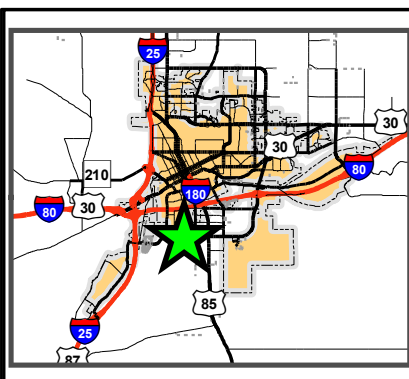
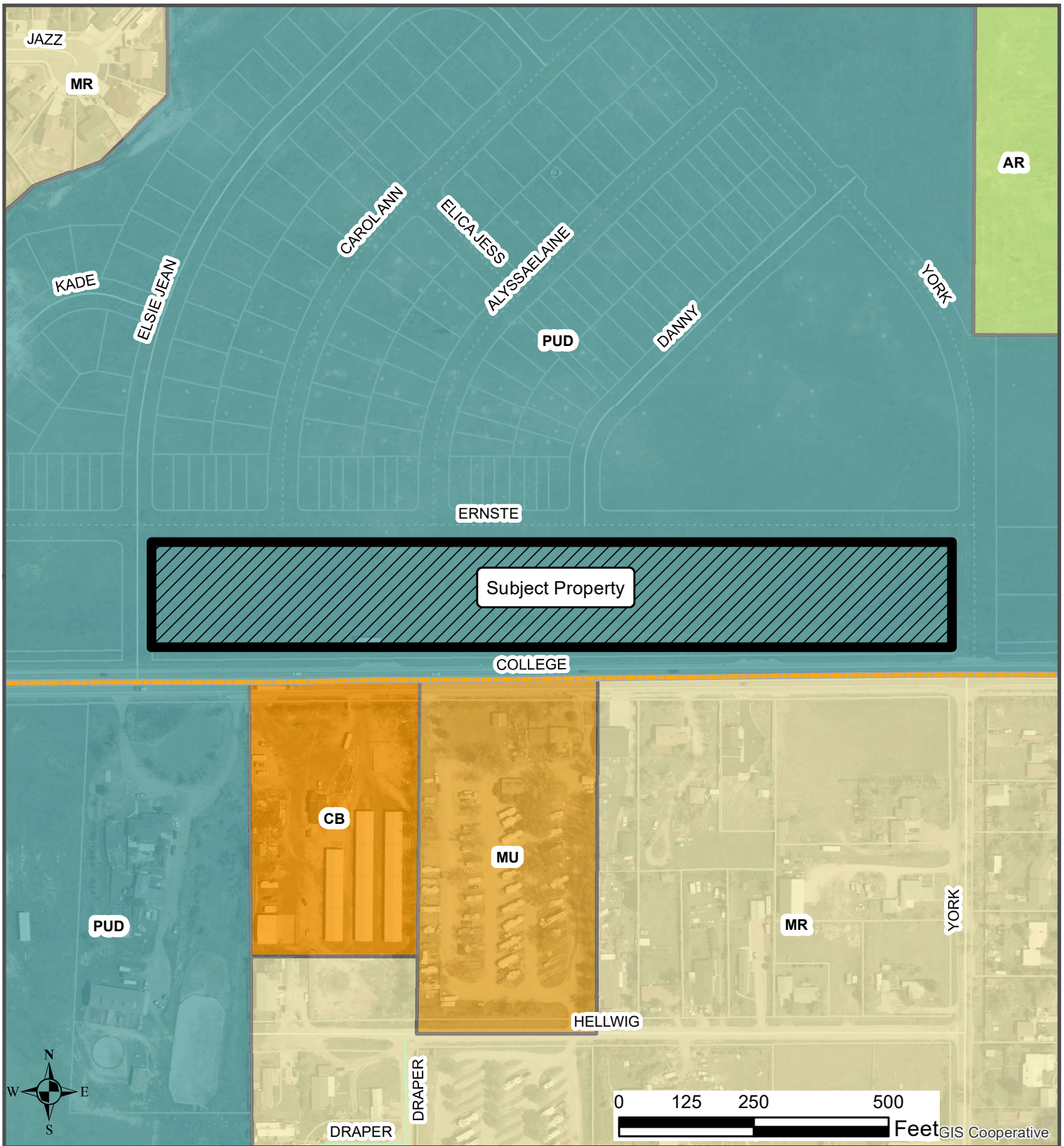
The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

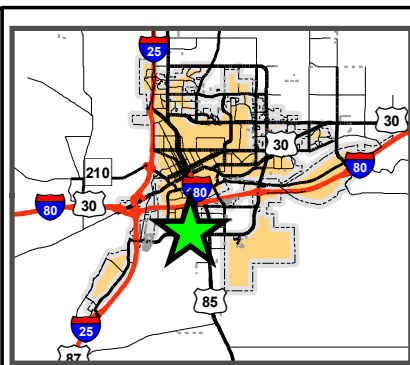
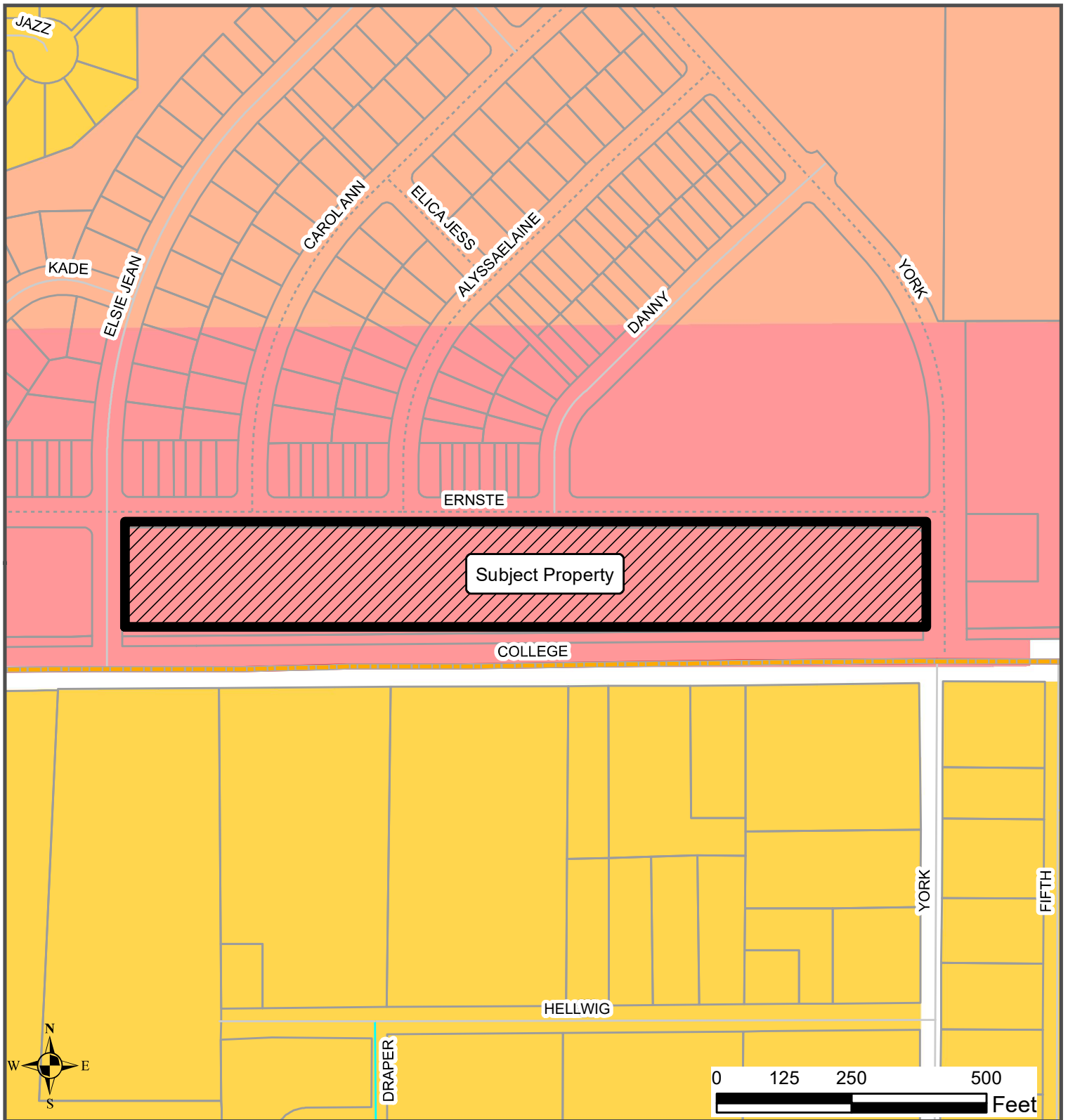


Attachment 1: Zoning Map UDC-22-00092

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- Nov19_CityLimits
- Interstate
- Principal Arterial
- Minor Arterial
- Major Collector
- Minor Collector
- Local
- Private
- Platted not built
- HR / High Density Residential
- MR / Medium Density Residential
- LR / Low Density Residential
- NR-2 / Neighborhood Residential - Med. Density
- NR-3 / Neighborhood Residential - High Density
- AR / Agricultural Residential
- A-1 / Agricultural and Rural Residential
- A-2 / Agricultural
- AG / City Agricultural
- MUR / Mixed Use Residential Emphasis
- CBD / Central Business District
- CB / Community Business
- NB / Neighborhood Business
- MU / Mixed Use - County
- MUB / Mixed Use Business Emphasis
- MUE / Mixed Use Employment Emphasis
- HI / Heavy Industrial
- LI / Light Industrial
- P / Public
- AD / Airport District
- PUD / Planned Unit Development
- X / Exempt



Attachment 2: Land Use Map UDC-22-00092

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Plat - Expedited

Submission date: **15 March 2022, 4:47PM**
Receipt number: **18**
Related form version: **7**

General Information

Applicant Name: **Tru Grit Land Development, LLC**

Applicant Address: **140 Waltersheid Blvd**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82007**

Applicant Phone: **3077780400**

Applicant Email: **ernste@mhbwy.com**

Representative Name: **CivilWorx, LLC**

Representative Address: **1807 Capitol Avenue Suite 206**

Representative City: **Cheyenne**

Representative State: **Wyoming**

Representative Zip Code: **82001**

Representative Phone: **3075141012**

Representative Email: **Kelly.Hafner@civilworxeng.com**

Owner Name: **Tru Grit Land Development, LLC**

Owner Address: **140 Waltersheid Blvd**

Owner City: **Cheyenne**

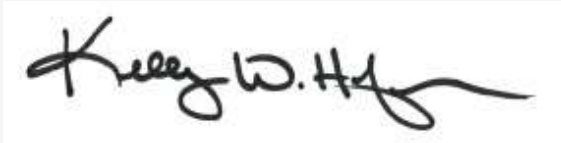
Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	3077780400
Owner Email:	ernste@mhbwy.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Harmony Valley 4-plexes Authorization.pdf
Project Location (Street Address or General Location):	SW Richard Martin Drive and York Avenue
Assessor's Parcel ID number(s)	13660731800100
Total Project Area	6.67 Acres
Existing Zoning	PUD - Existing

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	Replat Lot 1, Block 8, Harmony Valley 1st Filing into 27 lots for 4-plex residential and common lots.
Current Subdivision	Harmony Valley
Lots affected by this proposal	Lot 1, Block 8
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	03/02/2022
Upload any pre-application meeting notes or summaries relevant to this proposal.	Harmony Valley 4-Plexes Pre-App Meeting Summary.pdf
Are any easements proposed to be added, modified, or removed?	Yes
If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.	Harmony Valley 4-plexes Easements.pdf

Open Space Approach	Open Space will be provided as approved with the Site Plan for said parcel.
Drainage Worksheet / Study	Harmony Valley 4-Plexes Replat Waiver.pdf
Transportation Worksheet / Study	Harmony Valley 4-Plexes Replat Waiver.pdf
Transportation Network Plan	Harmony Valley 4-Plexes Replat Waiver.pdf
Preliminary Plat Drawing	Harmony Valley 4-Plexes Preliminary Plat 3-15-22.pdf
Final Plat Drawing	Harmony Valley 4-Plexes Final Plat 3-15-22.pdf

Signature / Certification

Applicant Signature	Name of signatory: Kelly Hafner  Uploaded signature image: sign.kwh.PNG
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Please enter an email address for an email receipt.

Kelly.Hafner@civilworxeng.com

